

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 11132 of 2022

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

IN THE MATTER OF:

M. A. Hossain

....Petitioner

Versus

Bangladesh, represented by the Secretary
(Internal Resources Division), Ministry of Finance,
Bangladesh Secretariat, Abdul Gani Road, Police
Station-Shahbagh, District-Dhaka and others

....Respondents

Mr. Md. Ozi Ullah, Advocate with

Mr. Mohammad Abdul Karim, Advocate

....For the Petitioner

Mr. Shah Monjurul Hoque, Senior Advocate with

Mr. Muhammad Harunur Rashid, Advocate

....For the respondent No. 4

Present:

Mr. Justice Md. Iqbal Kabir

And

Mr. Justice S.M. Maniruzzaman

Judgment on 06.11.2023.

Md. Iqbal Kabir, J:

On an application under Article 102 of the Constitution of the People's Republic of Bangladesh, at the instance of the petitioner this Rule Nisi was issued in the following terms:

"Let a Rule Nisi be issued calling upon the respondents to show cause as to why the respondents should not be directed to deliver/transfer the Auction Property to the petitioner upon receipt of the auction bid money and to grant opportunity to the petitioners to pay the remaining decretal amount through installments and why order No. 16 dated 12.06.2022 and the impugned order No. 17 dated 22.06.2022 respectively passed by the learned Judge, Artha Rin Adalat, Chattogram passed in Artha Jari (Execution) Case No. 26 of 2021 pursuant to the judgment and decree dated 12.10.2020 passed by the respondent No. 3, Judge, Artha Rin Adalat, Chattogram in Artha Rin Suit No. 20 of 2010 rejecting the application for setting aside the

auction sale and modifying the order No.16 dated 12.06.2022 as contained in Annexure-E and G should not be declared to have been passed without lawful authority and is of no legal effect and/or to pass such other or further order or orders as to this Court may seem fit and proper."

At the time of issuance of the Rule, this Court also passed an interim order in the following manner:

"Pending hearing of the Rule, let the operation of the auction proceeding be stayed for a period of 2(two) months from the date subject to payment of Taka 6,00,00,000.00 within one month from the date.

The petitioner intends to pay the rest amounts as claimed by the Bank within the next 11 months in equal installments. The petitioner is further directed to give compliance for the payment of the first installment and subsequent installments. In case of default for the first installment, the order of stay stands vacated and the Rule stands discharged. Regarding payment of other installments consecutive default in paying 3-installments, the Rule also stands discharged. The petitioner is further directed to give compliance accordingly. In case of default as mentioned above Bank will be at liberty to issue fresh notice as per Section 12 of the Artha Rin Adalat Ain, 2003."

The short facts stated in this application are that the petitioner is the proprietor of M/S. Super Poly and Packaging, Director of M/S. Zoha Knitwear Limited is a qualified businessman with having sound financial reputation. However, relates to a loan amount respondent No. 4 as the plaintiff filed Artha Rin Suit No. 20 of 2010 before the Artha Rin Adalat No. 1, Chattogram for recovery of Tk. 11,95,42,585.72. The Artha Rin Adalat passed a judgment and degree for Tk. 11,95,42,585.72 thereafter, respondent No. 4 filed Artha Jari (Execution) Case No. 26 of 2021 for Tk. 28,56,01,493.60 and published 1st Auction notice under Section 33(1) was published.

Being aggrieved challenging the legality of the impugned order brings this writ petition and obtained the present Rule and interim order of this Court.

Mr. Mohammad Abdul Karim, the learned Advocate for the petitioner upon placing the petition submitted that the petitioner is ready and willing to repay the decretal amount and accordingly, filed a petition for installment of the repayment of the decretal amount but the learned Court of the Artha Rin Adalat without considering the same, rejected the application and passed the impugned order which is bad in law, illegal, unlawful and violation of the provisions of Artha Rin Adalat Ain, and as such, the impugned order has passed without lawful authority and is of no legal effect, for the ends of justice the Rule is liable to be made absolute.

He submits that the market price is higher than the bidding price, and the auction price is shockingly inadequate and low. He claims auction proceedings suffer from legal infirmity caused by material irregularity and illegality. According to him, the petitioner incurred loss not only on account of the real price but also shall incur further liability under the decree, which cannot be paid for because of the losing the valuable property at any cost of the low price so offered. As such the auction proceeding and order No. 16 dated 12.06.2022 and impugned order No. 17 dated 22.06.2022 is void and liable to be set aside and liable to be declared to have been passed without lawful authority and is of no legal effect.

He submits that by filing an application praying for installment to make payment of the entire decretal amount within a year which was rejected illegally. However, the petitioner is ready and willing to get back his property on paying the deed money/offered money to the auction purchaser and as such, an order may pass to the effect for ends of justice.

Lastly, he submits that Rule Nisi is pending for hearing, during the pendency of the Rule all acts done by the Court below are wrong and cannot sustained. In support of his submissions, he cited several decisions as under:

Jamila Tannery Limited vs. Bangladesh and others, reported in XIV ADC (2017)-465, Rokaiya Amin vs. Bangladesh and others, reported in 67 DLR-545, Md. Abu Nasar Patwary and others vs. Government of Bangladesh and others, reported in 15 BLT (HCD)-204, Golam Morshed vs. Farhad Jahan (Mrs.) and others, reported in 42 DLR (1990)-223, Drilltee-Maxwell Joint Venture vs. Gas Transmission Company Limited (GTCL) and others, reported in 21 BLC (2016)-122, Jahangir Kabir Chowdhury vs. Bangladesh and others, reported in 22 BLC (AD)-139, Abdul Aziz vs. Abani Mohan, reported in 30 DLR (AD)-221, Bangladesh vs. Khair Bhuiyan, reported in 55 DLR (AD)-76, M. Majid vs. Iqbal Bahar, reported in 2000 BLD-285 affirmed in 5 BLC (AD)-7, Rupali Bank Ltd. vs. Joint District Judge and Artha Rin Adalat and others, reported in 17 BLC (2012)-217, Jubak Housing vs. Judge, Artha Rin Adalat and others, reported in 23 BLC (2018)-186, Agrani Bank Ltd. vs. Secretary, Ministry of Law and others, reported in 20 BLC (2015)-329, Agrani Bank Limited vs. Judge, Artha Rin Adalat, and others in Writ Petition No. 12231 of 2013 with 30 and 89 of 2014.

Mr. Shah Monjurul Hoque, the learned Senior Advocate along with Muhammad Harunur Rashid, the learned Advocate appearing for respondent No. 4, by filing an affidavit-in-opposition contested the Rule thereby submitting that the Rule should be discharged for the following reasons:

He submits this writ is not maintainable as section 41 read with section 44 of the Artha Rin Adalat Ain, 2003 clearly states petitioner has an alternative forum. According to him under the legal position, the petitioner cannot travel to this jurisdiction challenging a post-decree order without exhausting the said alternative

statutory forum available under section 41 of the Artha Rin Adalat Ain, 2003. In this regard, he cited authority i.e., Sonali Bank Ltd vs. M/S Asa Tex International and others, reported in 35 BLD (HCD) 34 and 20 BLC (HCD) 185.

According to Mr. Hoque, there is no bar in view of section 31 of the Ain to continuing the Artha Rin Execution proceeding. Indeed operation of the interim order of this Court passed in Writ Petition No. 11132 of 2022 was stayed by the Appellate Division in the Civil Petition for Leave to Appeal. Thus, he argued the Court below did not commit any illegality in continuing the proceeding of the case and concluded the auction sale during the pendency of the Rule. He submits that the auction sale has already taken place and based on the said auction sale, the auction purchaser has paid the entire amount to the respondent No. 4 bank. Subsequently, the Artha Rin Adalat has issued a certificate of purchase (Bainama) to the auction purchaser and also given possession of the property in question.

He submits petitioner failed to discharge his burden of proving his case before this Court that the price of the land is Tk. 12,00,00,000/-. Moreover, In reply, he submits fraud and or irregularity in selling the property in the auction has taken place is a disputed question of facts, and such a claim cannot be decided in a summary proceeding, in support of his case he cited an authority (Dr. Syed Matiur Rob being dead his heirs Shamsun Nahar and others vs. Bangladesh, reported in 1990 BLD (AD) 52)

At this juncture, it transpired that the respondent auction purchaser submitted an original copy of Boinama, the Court below fixed the next date on 14.09.2022 for submission of VAT by the Bank and auction purchaser. However, the judgment debtor i.e., petitioner traveled writ jurisdiction, where from obtained a Rule and order of stay in the instant case. The petitioner took the necessary initiative for depositing auction money as this Court allowed him by the order dated 13.09.2022. Against such an interim order passed by this Court respondent Bank traveled to the Appellate Division. The Judge-in-Chamber stayed the operation of the impugned order passed in Writ Petition No. 11132 of 2022 for a period of 8 (eight) weeks in the Civil Miscellaneous Petition No. 733 of 2022. Thereafter, the Appellate Division disposed of the Civil Petition for Leave to Appeal No. 78 of 2023 filed by the Bank, wherein allowed to continue the order of stay passed by the Chamber Judge. By this time auction purchaser following the provision of law deposited VAT and the Court below gave a certificate of sale, thereby Boinama was executed and the Court allowed the application to handed over the possession, and Nezarat handed over the possession of the land to the auction purchaser.

It appears that the interim order passed by this Court i.e., auction proceeding was stayed by this Court, and that interim order of stay was also stayed by our Appellate Division. At this juncture, it reveals that there was no stay or bar in the proceedings to continue the Artha Jari Case. In light of the above facts and

circumstances of the case, as stated above, the decisions relied upon the petitioner do not come for any assistance.

For the reasons and discussions made herein above, we find force in the submissions made by Mr. Shah Monjurul Hoque, the learned Senior Advocate for respondent No. 4. Thus, we are of the view that the Rule has become infructuous.

Accordingly, the Rule Nisi is discharged.

The order of stay granted at the time of issuance of the Rule Nisi is hereby recalled and vacated.

There will be no order as to costs.

Communicate the order at once.

S.M. Maniruzzaman, J:
I agree.